

Rajmani v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 December 2022 · Writ-C No. 36856 of 2022 · **Writ disposed; petitioner relegated to clause 6.8(b)(i) with limited stay of coercive recovery.**

HEADNOTE

A consumer challenged a demand notice dated 20.7.2022 on factual grounds. Held, the proper remedy is to file a reply before the Executive Engineer under clause 6.8(b)(i) of the U.P. Electricity Supply Code, 2005. The assessing officer must decide every objection after notice and hearing by a reasoned speaking order, preferably within four weeks of the reply. Coercive action on the demand is stayed for two months or until that decision, whichever is earlier; default lets the licensee proceed in accordance with law.

FACTUAL SUMMARY

Rajmani approached the Allahabad High Court against a demand notice dated 20 July 2022 issued by respondent no. 2, raising several factual objections. Counsel for the parties were heard. The Court did not try those objections on the writ side and instead sent the consumer to the Executive Engineer under the Supply Code, while staying coercive recovery for a limited time if a reply was filed within two weeks.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)(i)

objection to demand notice before assessing officer

HOLDING

A consumer who attacks a demand notice on factual grounds must first invoke clause 6.8(b)(i) by filing a reply before the Executive Engineer; the assessing officer is then obliged to deal with all objections after notice and hearing by a reasoned speaking order. Pending that decision, or for two months, whichever is earlier, no coercive measure may be taken on the demand if the consumer so approaches; default restores the licensee's liberty to proceed in accordance with law. ¶ 1

PRINCIPLE TAGS

demand-notice-objections-under-6.8(b)(i) The writ against the 20.7.2022 demand was not decided on the factual objections; the petitioner was directed to file a reply under clause 6.8(b)(i) and the assessing officer was bound to pass a speaking order after hearing, with a limited stay of coercive recovery. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DEMAND NOTICE DATED 20.7.2022 ON THE FACTUAL ISSUES RAISED

The Court did not examine those objections and relegated the petitioner to clause 6.8(b)(i). ¶ 1